

POWER OF ATTORNEY

(PARENTAL)

FORMS AND INSTRUCTIONS

POWER OF ATTORNEY FORMS

CHECKLIST

A Power of Attorney is a legal document which you can use to give another adult the authority to act on your behalf.

✓ **You may use the Law Library Resource Center Power of Attorney forms if:**

- you are 18 years of age or older, and
- you live in Arizona, and
- you are of sound mind.

✓ These forms may not meet the legal requirements for states other than Arizona. If you need a Power of Attorney to be valid in another state, you should check with an attorney that practices in that state to ensure the Power of Attorney will be valid.

✓ Which Power of Attorney form you should use depends on what you want the other person to be able to do on your behalf. Please see below for more information on the different types of Powers of Attorney:

➤ If you want the other person to be able to act on your behalf in a wide variety of situations, you may want a **GENERAL POWER OF ATTORNEY:**

- **USE** the General Power of Attorney form to give another adult **complete** authority to act on your behalf in most situations, including personal finances, real and personal property, and a large range of business transactions.
- **DO NOT USE** the General Power of Attorney form to give another adult authority to make decisions regarding your health. Refer to the Health Care Directives available through that Arizona Attorney General's Office at:

http://www.azag.gov/life_care/

➤ If you want the other person to be able to act on your behalf in specific situations only, you may want a **SPECIAL POWER OF ATTORNEY:**

- **USE** the Special Power of Attorney form to give another adult authority to act on your behalf in **specific** situations only; such as a one-time business transaction or a specific sale of real or personal property.

➤ If you want to give the other person temporary authority over your child(ren), you may want a **PARENTAL POWER OF ATTORNEY.** The Parental Power of Attorney begins on a specific date and ends not more than **six months** later. The only exception to the six month period is for active military personnel, who are given one year delegation of parental authority.

- **USE** the Parental Power of Attorney form to give another adult **temporary** authority over your child or children in a specific situation **and** the person to whom you want to give the authority is willing to accept temporary authority over your child.
- **DO NOT USE** the Parental Power of Attorney form to give another adult guardianship or custody of your child. Please review the guardianship and/or custody paperwork in the Law Library Resource Center.

➤ If you want to give the other person authority over your health care decisions, you may want a **HEALTH CARE POWER OF ATTORNEY.** Please see the Arizona Secretary of State's website or the Maricopa County Superior Court Law Library for more information on Health Care Powers of Attorney. The Law Library Resource Center does not offer these forms.

➤ If you want to revoke or cancel a power or authority previously granted, you may want a **REVOCATION OF POWER OF ATTORNEY**

- **USE** the Revocation form to **cancel or revoke** any existing Power of Attorney.

Parental Power of Attorney

This packet contains court forms and instructions to file for parental power of attorney. Items in **BOLD** are forms that you will need to file with the Court. Non-bold items are instructions or procedures. Do not copy or file those pages!

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The documents you have received are copyrighted by the Superior Court of Arizona in Maricopa County. You have permission to use them for any lawful purpose. These forms shall not be used to engage in the unauthorized practice of law. The Court assumes no responsibility and accepts no liability for actions taken by users of these documents, including reliance on their contents. The documents are under continual revision and are current only for the day they were received. It is strongly recommended that you verify on a regular basis that you have the most current documents.

INSTRUCTIONS for PARENTAL POWER OF ATTORNEY

A Parental Power of Attorney is sometimes called a form for Delegation of Parental Powers. A person (usually a parent or guardian) signs a Parental Power of Attorney in front of a notary to give a trusted and willing person (Attorney-in-Fact or Agent) power to act in place of the parent or guardian. The parent or guardian in this case is called the Principal. A Parental Power of Attorney must be notarized. A Parental Power of Attorney is NOT a court order.

STEP 1: **OBTAIN** the Power of Attorney packet at the Maricopa County Superior Court “forms” website, or at one of the Law Library Resource Centers located in the valley.

Downtown Phoenix
101 W. Jefferson St.
Phoenix, Arizona 85003

Northeast Court Facility
18380 North 40th Street
Phoenix, Arizona 85032

Northwest Court Facility
14264 West Tierra Buena Lane
Surprise, Arizona 85374

Southeast Court Facility
222 East Javelina Avenue
Mesa, Arizona 85210-6201

- Read the Parental Power of Attorney FAQs and Instructions
- Complete the Parental Power of Attorney Form

STEP 2: **TAKE** the following to a Notary Public. You may find a Notary at most banks or listed in the Yellow Pages. They usually charge a fee. [The Clerk of Court will not notarize your documents and there is no need to file these documents with the Court.]

- The Witness
- The original completed Parental Power of Attorney Form
- Photo ID for the witness and you

STEP 3: **SIGN** the Parental Power of Attorney in front of the Notary and

- Tell the Witness to sign the form in front of the Notary
- Wait for the Notary to notarize the Parental Power of Attorney

STEP 4: **MAKE COPIES** of the Parental Power of Attorney for each person or organization you deal with

- Keep the original for your records
- Give a copy to the Attorney in Fact
- *Show* the people and organizations the *original*, and give them the copy

POWER OF ATTORNEY DELEGATING PARENTAL POWERS

Principal, the parent or guardian of the children listed below, hereby appoints the below-named Agent/Attorney-in-Fact to act in name and place of Principal, parent, or guardian to have parental authority and to perform general responsibilities of a parent and execute any of the below-listed specific acts, EXCEPT for authorizing the marriage or adoption of the minor children.

1. INFORMATION NEEDED:

- Current full legal name of the parent or guardian who is giving the temporary authority over the child(ren)?

- The full legal name of each child - and – Date of birth for each child

1. _____
2. _____
3. _____
4. _____
5. _____

- The full legal name of the person who agrees to and accepts the delegation of Parental Authority: (This is the same as the Attorney-in-Fact mentioned above)

- The full physical address of the person who agrees to and accepts the delegation of Parental Authority:

2. RESPONSIBILITIES DELEGATED: Check ONE if you, as a parent or guardian agree to give the following powers to the Attorney-in-Fact:

- ☐ I delegate all parental responsibilities I might perform myself
- ☐ I delegate only the specific parental responsibilities named as follows:

3. **DURATION:** This delegation of Parental Powers lasts up to six (6) months unless I, as Principal, Parent or Guardian, revoke it earlier, or unless I am a member of the military on active duty. Check only one:

- ☐ This Parental Power of Attorney begins on _____ and expires not more than six (6) months later on _____, unless I revoke it earlier or unless I am a member of the military on active duty.

- ☐ I am an active duty Military Member who is a parent or guardian of a minor child or ward. I delegate Parental Powers to my Attorney-in-Fact for a period not to exceed one year beginning on _____, and expiring not more than twelve (12) months later on _____, unless I revoke it earlier (ARS § 14-5107).

4. **MANNER OF REVOCATION:** The Principal may revoke this document in writing at any time before the expiration date, if the specific tasks have been accomplished by the Attorney-in-Fact, for no reason, for cause, or if the Attorney-in-Fact exceeds or violates the scope and authority granted by this document.

5. **COMPENSATION** of Attorney-in-Fact: None.

6. **SIGNATURES:**

For Principal:

I, _____, the principal, sign my name to this power of attorney this _____ day of _____ and, being first duly sworn, do declare to the undersigned authority that I sign and execute this instrument as my power of attorney and that I sign it willingly, or willingly direct another to sign for me, that I execute it as my free and voluntary act for the purposes expressed in the power of attorney, and that as required by A.R.S. § 14-5501, I am eighteen years of age or older, of sound mind, and under no constraint or undue influence.

Principal Signature

For Witness:

I, _____, the witness, sign my name to the foregoing power of attorney being first duly sworn, and do declare to the undersigned authority the principal signs and executes this instrument as the principal's power of attorney and that the principal signs it willingly, or willingly directs another to sign for the principal, and that I, in the presence and hearing of the principal sign this power of attorney as witness to the principal's signing, and to the best of my knowledge the principal is eighteen years of age or older, of sound mind, and under no constraint or undue influence.

Witness Signature

7. **NOTARIZATION:**

STATE OF _____

COUNTY OF _____

Subscribed, sworn to or affirmed, and acknowledged before me by _____, the principal, and
subscribed and sworn to or affirmed before me by _____, witness, this _____ day of
_____.

(notary seal)

Notary Public

Frequently Asked Questions

Power of Attorney and Related Forms

1. What is a Power of Attorney?

A Power of Attorney is a legal document that gives an adult the authority to act in your place. The person you appoint to act in your place is known as the "Attorney in Fact" or agent. It is very important that your agent is someone you trust.

With a valid Power of Attorney, the trusted person you name will be legally permitted to take care of important matters granted by the Principal – for example paying your bills or managing your investments.

2. Who can use a Power of Attorney?

A person who is 18 years of age or older in Arizona and is of sound mind can use the Power of Attorney as either a Principal, witness or Attorney in Fact.

3. What types of Power of Attorney forms are available in the Law Library Resource Center?

- *General Power of Attorney* – This power of attorney delegates unlimited authority to another person for them to act on your behalf.
- *Special Power of Attorney* – This power of attorney delegates limited authority to another person for them to act on your behalf.
- *Parental Power of Attorney* – This power of attorney temporarily delegates parental powers for six months unless you are active in the military.
- *Durable Power of Attorney* -The general and special powers of attorney can all be made "durable" by adding certain text to the document. This means that the document will remain in effect or take effect if you become disabled or incapacitated.

There are other types of Powers of Attorney. Further information is available at the Law Library Resource Center.

4. Who is "the Principal" on the Power of Attorney form?

The Principal is the person who gives the permission and authority to carry out his or her business.

5. What is an "Attorney in Fact"?

An Attorney in Fact is a person or agent chosen by the principal, who accepts the responsibility to act in place of the principal. He or she is an adult that the principal can trust, to do what the principal directs in writing. An Attorney in Fact has nothing to do with a lawyer or an "attorney at law."

6. What is the difference between a Power of Attorney and a Durable Power of Attorney?

A power of attorney is a means by which by one person, called a principal, authorizes another person, called an attorney-in-fact or agent, to legally undertake some action or business of the principal on the principal's behalf. A durable power of attorney is a special form of authorization that allows the attorney-in-fact to continue acting on the principal's behalf even if the principal is ill or unable to communicate.

7. When does the Durable Power of Attorney become effective?

The Durable Power of Attorney available from the Law Library Resource Center website becomes effective when the Principal and Witness sign the Power of Attorney in front of a notary.

8. How is the Durable Special Power of Attorney different from a Power of Attorney that delegates parental powers?

A Durable Special Power of Attorney differs from a Parental Power of Attorney because it can be used for specific tasks other than delegation of parental powers. The Power of Attorney to delegate parental powers is specific only to the parent-child relationship.

9. Do I need to know the witness?

No. However, you cannot expect that an informed adult will be available to act as a witness at the notary office. In order to be prepared, it is best to take a person willing to be a witness with you to the notary office. Also, it may be helpful to have a person (the witness) know that you executed a Power of Attorney.

Also, it is not a requirement that the notary public provide customers with a translator. It may be in the best interest of the Principal to have a trusted witness to translate. A witness/translator may need to be present to verbally translate oaths before having their signature notarized.

10. May a non-Arizonan use these forms?

These Power of Attorney forms are based on Arizona law. Arizona law has requirements for the Principal, witness, Attorney in Fact, Notary, as well as the Power of Attorney form. These requirements may differ from those in other states. The people who sign and use the Arizona Power of Attorney form must follow these instructions and abide by Arizona Power of Attorney laws.

11. May I edit or remove language from the Power of Attorney form?

Yes, but in specific places only. The places for editing the form are indicated by a box to check or a line to mark, where you are given choices of the tasks you want the Attorney in Fact to perform. You may cross out any task you do not want your Attorney in Fact to do, or you may check mark the section you want the Attorney in Fact to perform. Both the principal and agent should initial any changes in these specified places.

12. May I use these Power of Attorney forms for health care or end-of-life planning?

No. For a packet of forms for end-of-life and health planning go to the Arizona Attorney General's office or website.

13. Can a Power of Attorney be used to distribute assets upon death of the Principal?

No. The Power of Attorney ends upon death the Principal (or on the end date, or date of revocation). Generally, the probate process is used to distribute assets if the Principal has died.

14. How can I cancel or revoke a Power of Attorney?

Revocation means to recall or cancel a power or authority previously granted. You can revoke a Power of Attorney at any time and for whatever reason you wish. You must do it in writing and give a copy of the revocation form to any interested third party such as a bank or financial institution whom you or your Agent have business. If your power of attorney was recorded for real estate purposes, the revocation must be recorded as well.

If you have a Durable Power of Attorney, you must be competent to make the decision to revoke or revise the Power of Attorney. If the Principal is not competent, a Durable Power of Attorney continues until the Principal dies.

15. When does a Power of Attorney end?

Generally, a Power of Attorney ends upon revocation, at the designated end date, or upon the death of the Principal.

16. Do I need to record this Power of Attorney?

It depends on what the Power of Attorney form directs the Attorney in Fact to do on your behalf. For example, you must record the Power of Attorney if the document directs the Attorney in Fact to transfer real property. (See A.R.S. §§ 33-411 through 33-423 – Conveyances and Deeds – Recording)

Generally, other types of Power of Attorney forms do not need to be recorded. Recordation is the act of entering a document with the county's recorder's office. The act of recording a Power of Attorney makes it a public record and enables those who rely on its existence (banks, contractors, attorneys) to easily verify your document. Also, if your Power of Attorney is lost or destroyed, the recorded document enables the Attorney in Fact to prove that s/he was actually appointed and has the authority to act as your agent.

17. What do I do with the Power of Attorney after I complete it?

The Power of Attorney does not need to be filed with the Court. Each person who is made your Agent should keep the original of his or her Power of Attorney form in a convenient place so that it can be located easily when needed. Many people will want to see the original Power of Attorney before permitting your Attorney-in-Fact to act on your behalf. At times, a copy of the Power of Attorney may be requested in connection with a particular transaction, but the Agent should never release the original. Please see #16 for information on recording the Power of Attorney.